

November 14, 2018



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11502
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce, by highway, of hazardous materials prepared in accordance with § 171.23 and the ICAO Technical Instructions, regardless of whether any part of the transportation is by aircraft. This special permit only applies to packaging, marking and labeling and shipping paper certification and description requirements and provides no relief from the Hazardous Materials Regulations other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.23 in that a hazardous material, packaged in accordance with the ICAO Technical Instructions, may not be solely transported by motor vehicles, except as specified herein; and § 172.301(c) and § 172.203(a) in that marking the special permit number on the shipping paper and package is required, and § 177.817 in that an air manifest can be used in lieu of shipping papers, except as specified herein.

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5. BASIS: This special permit is based on the application of FedEx, submitted in accordance with § 107.105, on July 15, 2016, and the public preceding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
All materials authorized for air transport under the provisions of § 171.23 and ICAO Technical Instructions	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:

a. Packaging is as required by the ICAO Technical Instructions and § 171.23 except that when 49 CFR prescribes more stringent packaging requirements than the packagings authorized by the Technical Instructions, the packaging used must conform to the requirements in 49 CFR.

b. If an air manifest is used in lieu of a shipping paper, after initial acceptance of a compliant shipping paper for hazardous material shipments the grantee may utilize the Notification of Pilot in Command documentation required by 49 CFR 175.33 in to meet the shipping paper requirements of 49 CFR 177.817 and 49 CFR 172.202-204 for manifesting purposes for subsequent ground transportation of hazardous materials shipments.

8. SPECIAL PROVISIONS: The marking requirements of § 172.203(a), § 172.301(c) and 172.203(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: Compliance with 49 CFR Part 177 is required.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180, when applicable.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KFW/kah